

## M/S Nirmala Dairy v. State of U.P. and others

High Court of Judicature at Allahabad · Division Bench · 25 July 2024 · 2024:AHC:118813-DB · Writ-C No. 21906 of 2024 · **Writ declined; petitioner relegated to Clause 6.5.**

### HEADNOTE

A writ seeking quashing of a recovery citation for electricity dues was not examined on merits. The Court held that Clause 6.5 of the Electricity Supply Code, 2005 afforded an efficacious remedy and left the petitioner to approach respondent No. 2 under that clause.

### FACTUAL SUMMARY

M/s Nirmala Dairy, the consumer, petitioned the Allahabad High Court to quash a recovery citation dated 27 July 2021 issued by respondent No. 3 for recovery of electricity dues. On the hearing, counsel for the Electricity Department submitted that the petitioner had an efficacious remedy under Clause 6.5 of the Electricity Supply Code, 2005. Learned counsel for the petitioner did not dispute that submission.

### HOLDING-UNITS

#### HOLDING-UNIT · UP-2005::6.5

alternate-remedy-clause-6.5

#### HOLDING

Where a writ petition challenged a recovery citation for electricity dues and the licensee's counsel invoked Clause 6.5 of the Electricity Supply Code, 2005 as an efficacious remedy, which the petitioner did not dispute, the Court declined to examine the challenge and left the petitioner to approach respondent No. 2 under Clause 6.5. ¶ 2-3

### PRINCIPLE TAGS

#### billing-objection-to-executive-engineer-under-6.5

A writ seeking quashing of a recovery citation for electricity dues was not examined on merits. The Court held that Clause 6.5 of the Electricity Supply Code, 2005 afforded an efficacious remedy and left the petitioner to approach respondent No. 2 under that clause. ¶ 2-3

### NOT DECIDED — NEGATIVE AUTHORITY

#### NOT DECIDED — VALIDITY OF THE RECOVERY CITATION DATED 27.07.2021

The Court declined to examine the challenge on merits and relegated the petitioner to Clause 6.5. ¶ 3